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Chapter Author(s): Katharina Maier, Rosemary Ricciardelli and Shadd Maruna

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INTRODUCTION FROM THE ISSUE EDITORS

Desistance, Social Justice and Lived Experience

Katharina Maier, Rosemary Ricciardelli and Shadd Maruna

A central aim of the *Journal of Prisoners on Prisons (JPP)* is to (re-)centre criminalized and marginalized people's voices as essential to our understanding of punishment, law, and justice, as well as on-the-groundwork by people toward change and reform. *JPP* positions actors in justice as experts and highlights their identities as much more than their legal status of 'offender'. The journal seeks to situate the essence of incarceration and reentry (as well as of being criminalized and striving to remove the label of 'criminal') within lived experiences. In this *Special Issue*, we engage with an area of criminological research that has sought to endorse precisely these principles almost from its origins: *desistance from crime*.

First emerging as a field of study around the turn of the last century (see Farrall, 2002; Giordano, Cernkovich & Rudolph, 2002; Maruna, 2001; Laub & Sampson, 2001), desistance from crime has in recent years become an almost ubiquitous concept in academic criminology and criminal justice (see Sered, 2021; Bersani & Doherty, 2018). Conceptually, desistance theory has served to expand, refine, and challenge the more traditional concepts of reintegration, rehabilitation, and recidivism (see McNeill, 2012; Ward & Maruna, 2007), inspiring rich and varied empirical studies on how criminalized people manage to re-build their lives in the face of structural marginalization, socio-economic disadvantage, and stigma (see Abrams & Terry, 2017; Richardson & Vil, 2016). Yet, beyond providing a conceptual and empirical hook to those interested in punishment, crime, and justice, desistance theory has a wider and also deeper significance – desistance signals a broader shift in how societies ought to think about crime, criminalized people, and recovery. To this extent, desistance pushes academics to re-think their representation of criminalized people's voices in academia, while encouraging scholarly work and grassroots reforms aimed at (re-)building a criminal legal system that emphasizes compassion, humanity, and well-being over exclusion, stigma, and distrust (see Hart & Van Ginneken, 2017; Maruna, 2017). Like the *JPP* itself, the engine driving so much desistance theory and research is the concept of lived experience and the wisdom that can only be gained from listening to those who have themselves escaped the cycle of crime and justice (Bernard, 2015; Hart & Healy, 2013; Maruna, 2001; Weaver & Weaver, 2013).

In light of the above, the goal of this edited collection is to provide a conversational space for the theoretical and empirical advancement of the study of desistance, social justice, and lived experience. The journal issue aims to highlight the voices and experiences of those impacted by the criminal legal system inside and outside the prison, as integral and essential to our collective understanding of what desistance is, how it works, and the changes necessary to establish systems and structures to facilitate desistance and inclusion.

Desistance scholars are interested in *how* people manage to forge and sustain a path away from criminal engagement – or, simply, how people ‘make good’ or ‘go straight’ (Maruna, 2001). Desistance research examines the events, processes, and social institutions that shape people’s agentic ability to re-build their life and develop a positive narrative of self (e.g., Giordano et al., 2002; Laub & Sampson, 2001; Vaughan, 2007). Desistance may encompass different phases or aspects. For instance, Maruna and Farrall (2004) initially differentiated between *primary desistance* (i.e., a change in behaviour away from offending) and *secondary desistance* (i.e., a subjective change or identity transformation as a non-offender). McNeill (2015) later added another facet or phase, *tertiary desistance*, which refers to the shift in people’s sense of belonging to a community. Importantly, however, desistance does not describe a temporally linear process. For instance, *secondary desistance* may precede *primary desistance* (see King, 2013) and tertiary desistance may be necessary before achieving secondary desistance (see Maruna et al., 2004). Nor is desistance always a smooth, positive, or neatly bounded episode in people’s lives. As Nugent and Schinkel (2016) have shown, desistance can be painful, lonely, and isolating, at the same time as desistance can be hopeful, positive, and rewarding. Seeing desistance as a highly subjective experience laced with different emotions and feelings requires scholars to pay attention to the events and processes that can facilitate change, and to take a deep look at “what these events and changes *mean* to the people involved” (McNeill, 2006, p. 47). Such meaning is best understood by listening to and learning from the personal narratives of desisters themselves, which we do in the collection of articles in this special issue.

The importance of studying and understanding people’s stories of desistance cannot be overstated. Each year in Canada, around 100,000 people reenter the community after a period of confinement (Maier & Ricciardelli, 2020). In the United States, around 600,000 people are released back into

the community after being incarcerated. Returning prisoners face a range of socio-economic challenges (e.g. finding employment and housing), in addition to being confronted with a range of rules, expectations, and norms that govern their movements, conduct, and ways of being in the community (see Miller, 2021). Desisting from crime is no easy journey, and desisting individuals have to face and overcome many personal and structural barriers on their 'road' to desistance. We asked authors to provide theoretical and empirical accounts of desistance, as well as reflect on established conceptions of desistance based on their own experience within the penal system. Many of the authors of this special issue talk about the harms they dealt with at the hands of the prison system, but they also describe positive experiences and sources of support that helped or even 'saved' them when working toward re-establishing their lives.

Our goal for this project is to add theoretical and empirical insight to the existing literature on desistance, which is rich and varied, by covering diverse topics. These topics include the emotional dimensions of desistance (e.g. Farrall & Crawley, 2005; LeBel et al., 2008), the role of relationships in desistance (e.g. Weaver, 2021), the interplay between structure and agency in such processes (e.g. Bottoms et al., 2004; Giordano et al., 2002), and how desistance may happen even within the harmful environment of the prison (e.g. Ugelvik, 2021). Contributions in this edited collection extend the empirical realm of desistance research, exploring a range of issues, from desistance and prison culture (see Utnage, 2022), to prisoner reentry (see MacPherson & Whitley, 2022), sports and desistance in prison settings (see Kay et al., 2022), and law and desistance (see Binnall, 2022).

Desistance is a topic central to criminological inquiry and practice, not least because one of its underlying goals is to advance a 'desistance-focused' legal system guided by humanity, compassion, and a genuine belief in people's willingness to 'make good'. Maruna (2017, p. 6) very succinctly said: "At the heart of desistance research is a very simple idea: people can change". Desistance challenges the objectification of criminalized people as 'offenders' that need to be treated or 'cured' (Bottoms & McWilliams, 1979), highlights the importance of meaningful relationships and support over a narrow focus on 'treatment', and directs attention toward criminalized people's futures, rather than their 'criminal' past. In short, desistance is forward-thinking and hopeful, based on future aspirations and leaving the past behind.

Also informing this special issue is our desire to push understandings of desistance beyond the individual actor. Maruna (2017, p. 11) suggested scholars conceive of desistance not just as an individual process, but also as a “social movement”, which entails a focus on rights, advocacy, collective action, and moving the concept of desistance “back to the communities where desistance takes place”. Community is a central place for desistance to be discussed, practiced, and enacted, and desistance in the community requires academics to listen to and learn from those directly impacted by the criminal legal system in their day-to-day lives. Required here, as Maruna (2017) emphasized, is for academic research to become more inclusive, to forge new collaborations with community organizations, and create more sustainable structures that enable criminalized people to be involved in research and other creative endeavors tied to desistance. Recent collaborative projects, such as *Distant Voices*,¹ an arts-based project between songwriters, academics, and (ex-)prisoners in Scotland, are creative and promising examples of the positive outcomes tied to community efforts and engagement. Our hope is that this collection of writing will further engage diverse audiences in the study of and interest in supportive desistance.

In this special issue of the *JPP*, we include nine articles that each examine various theoretical, empirical, and experiential facets of desistance. Christopher Havens and Marta Cerruti’s (2022) piece offers readers a conversation between the two authors from their respective vantage points as an incarcerated independent researcher in mathematics and advocate for prison education. Their contribution provides insight into Christopher’s conception of desistance, defined by the author as “a pattern in which one chooses to live a life where their decisions are followed by actions that do not involve breaking the law”. The conversation offers deep reflection on how and why people use the label of “desister” drawing on Christopher’s experiences in prison and the way math “saved” him, while challenging the dominant conceptions of what is considered the “norm” versus an “anomaly”. The content and format of their contribution highlights the value of relationships and stories in understanding desistance from crime.

Kris MacPherson (2022), drawing on the literature of ‘convict criminology’, provides a critical reflection on his emotions and experiences when transitioning from prison to community living. Kris explains the significance of prisoner re-entry for desistance theory and research, and highlights the importance of roles and routine activities, such as being

a father and academic, in the context of his own desistance journey. He also tells us about some of the challenges tied to prison release, including experiences of stigma, which can frustrate and impede the desistance process. He ends with an important question: “How can one expect people to desist if they are still struggling with the same issues they experienced prior to custody?”

Christopher Kay and colleagues (2022) examine a sport coach developer’s reflective narrative account of their experience of delivering a football-based program within a women’s prison. The authors argue their contribution offers “an account of the ‘up-front’ work that takes place with individuals who may be taking their first steps towards change, and how this change is supported externally”. They highlight how desistance is a co-produced effort between clients and service providers, and call for further research on experiences of facilitating early desistance transitions. In their article, the authors emphasize the role and weight of relationship building in facilitating desistance, whether in prison and beyond.

Ruth Utnage (2022) draws on years of experience in prison to explore the connections between desistance and prison culture. She proposes a trifurcated classification theory of people in prison: active persisters, passive desisters, and dedicated desisters. Ruth underlines the importance of researching desistance with reference to institutional prison culture and norms. Relationships within prison and with “non-offenders”, such as visitors and community members, are explored in the context of Utnage’s own experience. The author highlights that for prisoners, interactions with “non-offenders” in prison play a meaningful role in shaping one’s sense of self and belonging to the community, even while they are incarcerated.

Stephon Whitley (2022), with a forward by Nathan Link, reflects on the barriers and facilitators in the context of Whitley’s own desistance story. Their piece starts with a summary of how the two contributors met, and then explores Stephon’s own experiences of the dehumanizing and degrading treatment of people in prison, and the stressors and barriers of transitioning from prison to the community. Stephon provides deep insight into the realities of prison living, specifically in the realms of employment, abuse and violence, and other struggles and harms, reflecting on these experiences in the context of their story of desistance.

Francis Kroncke (2022) tells their “captive story” which includes a deep account of the experience of what taking the first step “*inside*” and the last

step in the “*outside world*” felt like. Francis argues that telling stories of confinement and captivity require introspection and reflection. Through an honest, deep account, Francis tells the story of how imprisonment “effectively re-embodied me as a subhuman”, referring to the subjugation and degradation they experienced at the hands of prison officials and the system as a whole. The author shows how they navigated and resisted this “subhuman” position, creating alternative accounts of self and their past.

James Binnall, drawing on their own journey from prison to becoming a practicing attorney, draws readers into the nuances of the legal profession. Binnall argues criminalized people bring unique skills to the legal profession, such as empathy and an understanding of structural barriers, which actors can positively use in providing legal support and advocacy for marginalized populations. Positioning the legal profession as a viable option for formerly incarcerated people, James proposes several recommendations related to how legal education and the profession more broadly could be made more inclusive.

The final article in the special issue is an autoethnographic account by Daniel Mickelthwaite, who is serving a life sentence, detailing prison life and rehabilitation. The author problematizes the interaction between risk-based prison rehabilitation interventions and prison culture and masculinities. Daniel shows how risk-based programs enable and reinforce “toxic masculinities” in prison settings. Based on his own experience, he proposes various recommendations for how prison programs could be more rehabilitative and attentive to gendered dynamics but without creating toxic prison cultures.

Overall, our hope is that this thematic collection moves interdisciplinary scholarship on desistance and social justice forward in new and creative ways. Together, the contributions by authors discuss and advance established ideas in existing desistance scholarship. More importantly, they feature the voices of desisters impacted by the criminal justice system, providing deep, personal narratives of what desistance is, what facilitates and frustrates desistance, and the meaning of relationships in the desistance process. The articles embody a diversity of perspectives and disciplinary positions that promise to open up new insights into desistance and social and legal justice. We hope that the special issue provides a challenging yet rewarding read into the personal struggles and harms of actors and experiencers of systems of justice, while highlighting the resiliency (however defined) and hope

of desisters. As guest editors we recognize how privileged we are to have worked with authors, and we thank each for sharing their perspectives and contributing to the collection.

ENDNOTES

- ¹ For more information, see: <http://www.sccjr.ac.uk/wp-content/uploads/2017/02/Distant-Voices-Information-Pack-1.pdf>

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ABOUT THE SPECIAL ISSUE EDITORS

Dr. Katharina Maier is Assistant Professor in the Department of Criminal Justice at the University of Winnipeg. Her research focuses on the experiential dimensions of punishment in prison and the community, as well as on issues surrounding drug use, public health, poverty and social marginality. Her work has been published in *Theoretical Criminology*, *Punishment & Society*, and *Criminology & Criminal Justice*, among other venues.

Dr. Rosemary Ricciardelli is Professor (Sociology) and Research Chair in Safety, Security, and Wellness at Memorial University's Fisheries and Marine Institute. Elected to the Royal Society of Canada, her research centres on evolving understandings of gender, vulnerabilities, risk, and experiences and issues within different facets of the criminal justice system and among mariners. She has published in the areas of PSP, criminalized persons, and wellness – broadly defined. As a sex and gender researcher, her interests lay in the social health, identity construction, and lived experiences of individuals.

Dr. Shadd Maruna is Professor of Criminology at Queen's University Belfast and President-Elect of the American Society of Criminology. His book *Making Good: How Ex-Convicts Rebuild Their Lives* was named the "Outstanding Contribution to Criminology" by the American Society of Criminology in 2001. His other books include *Rehabilitation: Beyond the Risk Paradigm*, *After Crime and Punishment*, and *The Effects of Imprisonment*. His work has been recognized with awards by the Howard League for Penal Reform and the Economic and Social Research Council of the UK.